

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar  
HONORABLE MICHAEL L. MAU  
1050 Mission Road, South San Francisco  
Department 20, Courtroom L  
**August 28, 2026 at 9:00 AM**

**If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).**

**Failure to comply with notice as outlined will result in no oral presentation.**

**Notice of Appearance and Courtesy Copies**

1. Email [Dept20@SanMateoCourt.org](mailto:Dept20@SanMateoCourt.org) before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:  
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**Day of Hearing**

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

**Remote Appearance Zoom Information**

**RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.**

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

**TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.**

| Case                                                             | Title / Nature of Case                                                                                                     |  |
|------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------|--|
| 9:00 AM                                                          |                                                                                                                            |  |
| Line 1                                                           |                                                                                                                            |  |
| 21-CIV-04015                                                     | WESLEY OSAZE, SUCCESSOR IN INTEREST OF DECEDENT<br>ANYA VALENCIA, ET AL VS. SKYLINE PET HOSPITAL,<br>UNKNOWN ENTITY, ET AL |  |
|                                                                  |                                                                                                                            |  |
| WESLEY OSAZE, SUCCESSOR IN INTEREST OF DECEDENT<br>ANYA VALENCIA | SAMI SEDGHANI                                                                                                              |  |
| SKYLINE PET HOSPITAL, UNKNOWN ENTITY                             | ALICIA R KENNON                                                                                                            |  |

Plaintiff's Motion to Strike or Tax Costs

**TENTATIVE RULING:**

Plaintiffs Wesley Osaze's and Lamberto Valencia's Motion to Strike and Tax costs from the Memorandum of Costs filed by Defendants Skyline Pet Hospital, et al., served on April 23, 2025, is DENIED.

The Court DECLINES plaintiffs' request in their January 21, 2026 supplemental brief that the Court exercise its discretion to continue the stay of further proceedings on costs pending resolution of the appeal and rules as set forth below.

Costs in the amount of \$40,767.69 are awarded to Defendants, including \$30,756 in expert witness fees. Plaintiff shall file an undertaking with the Court within fifteen (15) days after service of the Order after hearing with regards to the expert fees of \$30,756 to stay the expert fees pending the outcome of the appeal. The undertaking shall be consistent with the requirements of Code of Civil Procedure Section 917.1(b) (double the amount awarded by a non-admitted surety, or one and half times the amount awarded by an admitted surety).

*BACKGROUND*

The underlying action regards decedent Plaintiff Anya Valencia's fatal fall at defendant Skyline Pet Hospital's business in defendant Restani's building. No one saw the fall happen.

A complaint was filed in June 2021. The parties attempted settlement but were unable to reach an agreement. The matter concluded upon Defendants' successful motion for summary judgment (hereinafter "MSJ") on March, 28, 2025, when this Court granted defendants Skyline Pet Hospital, Hilda Aparicio-Gee dba Skyline Pet Hospital, and Mark W. Restani as Trustee of Restani Family Trust's MSJ on the grounds that Plaintiffs could not prove causation because the

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decedent's fall was unwitnessed. In granting defendants' motion for summary judgment, the Court ultimately ruled plaintiffs did not meet their burden to demonstrate a question of material fact with respect to causation for the fall, finding the testimony of plaintiff's expert witnesses based on "pure speculation." (Order Ruling on MSJ, filed March 28, 2025, at p.4.)

On April 23, 2025, Defendants filed Judicial Counsel of California forms MC-010 [Memorandum of Costs (Summary)] and MC-O11 [Memorandum of Costs (Worksheet)] requesting total costs of \$40,767.69, which forms the basis of the instant motion.

On May 1, 2025, Plaintiffs filed the instant motion in opposition. In it, plaintiffs assert the costs should be denied as untimely filed and unnecessary.

On May 2, 2025, the Court's judgment was signed and entered.

Defendants filed their opposition to the instant motion on August 22, 2025 contending there was a valid Code of Civil Procedure section 998 offer that had been rejected and plaintiffs failed to meet their burden under Code of Civil Procedure section 1035, subdivision (a) to demonstrate that the costs requested were unnecessary or unreasonable.

On September 5, 2025, hearing on the instant motion was held and the Court continued to February 2, 2026 for supplemental briefing because, although parties argued the validity of a Code of Civil Procedure section 998 offer, neither party provided the Court with a copy of the offer, rendering it impossible for the Court to rule on the issue. In January 2026 defendants filed a supplemental opposition attaching the written section 998 offer and plaintiffs filed a supplemental reply.

At the February 2, 2026 hearing, the Court once again continued the motion on its own motion "for approximately six months to allow the pending Appeal of the Judgment to conclude, with the continued hearing set for August 28, 2026 at 9:00 a.m." (CMO filed February 20, 2026.) The Court also exercised its discretion and stayed the matter to preserve the status quo and to protect the effectiveness of the appeal citing *Reed v. Superior Court* (2001) 92 Cal.App.4th 4489, 454 455. (*Id.*)

#### *LEGAL STANDARD*

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) A court may, upon motion or in its discretion, "[s]trike out any irrelevant, false, or improper matter inserted in any pleading" and "all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc. § 436, subds. (a)-(b).) Under Code of Civil Procedure section 1032, subdivision (b), as prevailing party, Defendants are entitled to recover costs. (Code Civ.Proc., § 1032, subd. (b).)

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The right to recover costs in litigation “ ‘exists solely by virtue of statute.’ ” (*Murillo v. Fleetwood Enterprises, Inc.* (1998) 17 Cal.4th 985, 989, 73 Cal.Rptr.2d 682, 953 P.2d 858, quoting *Estate of Johnson* (1926) 198 Cal. 469, 471, 245 P. 1089.) The general rule, as mentioned above, is that the prevailing party is entitled to recover its litigation costs. (§ 1032; *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1147, 202 Cal.Rptr.3d 429, 370 P.3d 996 (*DeSaulles*).) Section 998 “modifies the general rule of section 1032 that only the prevailing party recovers its costs.” (*Scott Co. v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1112, 86 Cal.Rptr.2d 614, 979 P.2d 974 (*Scott*).)

(*Madrigal v. Hyundai Motor America* (2025) 17 Cal.5th 592, 602 (*Madrigal*).)

### DISCUSSION

Plaintiffs first contend the Court should strike the motion as invalid due to untimeliness pursuant to the California Rules of Court, rule 3.1700, because it was not filed within 15 days of service of the notice of entry of the May 2, 2025, judgment. As the costs memorandum was filed prior to entry of judgment on April 23, 2025, the Court declines to do so. (*Haley v. Casa Del Rey Homeowners Assn.* (2007) 153 Cal.App.4th 863, 880 [courts can treat prematurely filed cost bills as being timely filed].)

As to the merits of the costs request, plaintiffs challenge three designations of costs: (1) filing fees; (2) deposition costs; and (3) expert witness deposition costs, all on the basis that defendants are seeking to recover costs that were not reasonably necessary to the conduct of the litigation and were instead “merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2); MPA at pp. 3-4) Furthermore, defendants provided no documentation to support the necessity of the expenses. Defendants oppose, contending the Code of Civil Procedure section 998 offer was valid and plaintiffs declined it. Thereafter, defendants’ motion for summary judgment was granted and defendants are entitled to recover their expert witness fees in the amount of \$30,756, along with other costs recoverable pursuant to Code of Civil Procedure section 1033.5. The Court agrees.

### *Defendants’ Section 998 Offer*

Section 998, subdivisions (c) and (e) address what happens if a defendant makes an offer, which is rejected or deemed withdrawn, and “the plaintiff fails to obtain a more favorable judgment or award.” Under those circumstances, the **plaintiff “shall not recover ... postoffer costs,” “shall pay the defendant’s costs from the time of the offer,” and may be required to pay some postoffer expert witness costs.** (§ 998, subd. (c)(1).)

(*Madrigal*, 17 Cal.5th at 602–603 [emphasis added].)

The policy behind section 998 is to encourage the settlement of lawsuits before trial. (*Martinez v. Brownco Construction Co.* (2013) 56 Cal.4th 1014, 1019, 157.) “It does so ‘by providing a strong

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financial disincentive to a party — whether it be a plaintiff or a defendant — who fails to achieve a better result than that party could have achieved by accepting his or her opponent's settlement offer. (This is the stick. The carrot is that by awarding costs to the putative settler the statute provides a financial incentive to make reasonable settlement offers.)' (*Bank of San Pedro*, at p. 804, 12 Cal.Rptr.2d 696, 838 P.2d 218.)" (*Madrigal*, 17 Cal.5th at 603.)

To trigger the operation of section 998, an offer must be valid and made in good faith. An offer is valid if it: (i) complies with the statutory requirements that it be in writing, contains the terms of the offer, include a mechanism for acceptance, and provides for entry of judgment or a legal equivalent if accepted (*Perez v. Torres* (2012) 206 Cal.App.4th 418, 425, 141 Cal.Rptr.3d 758 (*Perez*); see also § 998, subd. (a)); and (ii) is "sufficiently specific to allow the recipient to evaluate the worth of the offer and make a reasoned decision whether to accept the offer" (*Fassberg Construction Co. v. Housing Authority of City of Los Angeles* (2007) 152 Cal.App.4th 720, 764, 60 Cal.Rptr.3d 375 (*Fassberg*)). An offer is made in good faith if it "is ' "realistically reasonable under the circumstances of the particular case" ' [citation]—that is, if the offer ' "carr[ies] with it some reasonable prospect of acceptance" ' " (*Licudine v. Cedars-Sinai Medical Center* (2019) 30 Cal.App.5th 918, 924, 242 Cal.Rptr.3d 76 (*Licudine*)).

*Ayers v. FCA US, LLC* (2024) 99 Cal.App.5th 1280, 1293 *reh'g denied* (Mar. 20, 2024), *review dismissed, cause remanded sub nom. Ayers v. FCA US* (Cal. 2025) 335 Cal.Rptr.3d 275 [573 P.3d 38]

At the original motion hearing date on September 5, 2025, the Court found there was inadequate proof of the section 998 offer because the offer was not included anywhere in the record or the parties' moving papers. To address this, the Court required supplemental briefing from the parties at the September hearing. On January 16, 2026, defendants filed their supplemental opposition and appended the offer as Exhibit A. In pertinent part it reads:

Defendants SKYLINE PET HOSPITAL, HILDA GEE dba SKYLINE PET HOSPITAL, and MARK W. RESTANI as Trustee of RESTANI FAMILY TRUST (collectively "Defendants") hereby collectively offer to compromise the above-entitled pending action as to Plaintiffs, collectively, for the total sum of One Hundred Fifty Thousand and 01/100 dollars (\$150,000.01), in exchange for a dismissal with prejudice of the Complaint, Plaintiffs' agreement that each party shall bear his/her/its/their own fees and costs, Plaintiffs' agreement that they will satisfy any and all liens out of the proceeds paid, and Plaintiffs' agreement that they will provide proof to Defendants that any Medicare liens have been satisfied.

PLEASE TAKE NOTICE that if Plaintiffs do not accept this offer within thirty (30) days from the date it is made, or prior to trial, whichever occurs first, and Plaintiffs fail to obtain a more favorable judgment or award, Plaintiffs shall not recover costs and Defendants will seek costs, and expert witness fees as provided for in Code of Civil Procedure § 998.

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This offer is deemed withdrawn if not accepted within thirty (30) days, plus any additional time required pursuant to Code of Civil Procedure § 1013 due to the method of service employed.

DATED: December 26, 2024

(Defendants' Supplemental Opposition to Motion to Strike, Ex. A.)

The offer expired thirty days from the date of the offer, December 26, 2024, or on Saturday January 25, 2025. It is undisputed that plaintiffs did not accept the offer before its expiration.

In their memorandum in support of the instant motion plaintiffs assert that the section 998 offer was invalid thereby precluding the award of expert fees because the settlement offer was in exchange for a dismissal with prejudice. (MPA at p.6.) Defendants oppose, asserting that the Defendants' joint offer of \$150,000.00 was valid because it made it clear that defendants were only offering to pay a fixed amount regardless of any lien amounts. (Opp. at pp.7-8.)

In the supplemental briefing, the Court notes defendant does not present much argument regarding the validity of the section 998 offer other than to call it "valid". (Supp. Opp. p.3.) Plaintiff does not contest the validity, merely argues that the Court properly called out defendants' failure to attach the offer and allowing defendants multiple months to cure this omission after the filing deadline would improperly shift the burden and reward defective motions.

Upon the Court's review, the Court finds the offer meets the criteria of a valid offer because it is in writing, succinctly contains the terms and conditions, contains a place for written acceptance under a separate block titled "ACCEPTANCE OF OFFER TO COMPROMISE" with a signature line, and provides for entry of judgment upon acceptance in that plaintiffs will "[provide] a dismissal with prejudice of the entire Complaint." (Supp. Opp. Ex. A.) Finding there was a valid offer which was turned down, the Court reviews the substance of the fees requested.

#### *Filing fees*

Plaintiff takes issue with costs for the demurrer and motion to enforce settlement, contending that these motions were unsuccessful therefore "they cannot meet the statutory requirement of necessity" because a motion that fails to achieve its intended result is not reasonably necessary to the conduct of the litigation under CCP § 1033.5(c)(2). (MPA at p. 4.) The Court disagrees. "Filing, motion and jury fees" are the very first items listed as allowable costs under Code of Civil Procedure section 1033.5, subdivision (a). Accordingly, the request to strike filing costs is DENIED.

#### *Depositions*

Taking "necessary depositions" is an allowable cost. (Code Civ.Proc., § 1033.5, subd. (a)(3).)

Plaintiff takes issue with “the vast majority” of the \$8, 118.59 requested in deposition costs because “they were unnecessary to the adjudication of the [MSJ].” (MPA at p.4.) Because the MSJ focused solely on causation, the only deposition costs that should be allowed are those of Hilda Gee and Mark Restani which were cited in connection with the MSJ. (MPA at p.5.) Defendants counter, asserting Plaintiff does not meet their burden to rebut the presumption of reasonableness. The Court agrees.

“The necessity for a deposition and for the related expenditures is a question for the trial court’s sound discretion. [Citation.] The burden of proof that the deposition was unnecessary or that the costs of taking the deposition were unreasonable is on the party seeking to have that item taxed or reduced. [Citation.]” (*County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113.) However, a verified cost memorandum (sworn under penalty of perjury) serves as prima facie evidence that the costs were reasonably incurred, shifting the burden to the objecting party to rebut this presumption (*Id.* at 1114.) The underlying action was set for trial one month from the MSJ hearing and settlement had already been rejected. The Court is at a loss to imagine when else these witnesses would have been deposed. Moreover, the standard isn’t whether the costs were necessary to a singular motion in a vacuum, it is whether the costs were necessary to the entirety of the litigation. Accordingly, the motion to strike the challenged deposition costs is DENIED.

#### *Expert Witnesses Deposition Fees*

The primary thrust of the instant motion regards the \$30,756.00 sought in expert witness fees. “Recoverable costs generally do not include the fees of expert witnesses not ordered by the court. (§§ 1032, 1033.5, subd. (b)(1).) Such expert witness fees are recoverable in some circumstances, however, when a more favorable judgment for the defendant follows a plaintiff’s rejection of a pretrial section 998 settlement offer, thus triggering section 998’s cost-shifting provisions. [Citation.]” (*Kahn v. The Dewey Group* (2015) 240 Cal.App.4th 227, 237.) The Court addresses the expert witnesses and their fees as follows:

- **Brad Wong, accident reconstruction expert, 24.5 hours @\$350/hr = \$8,575.** Because this case turned entirely on the mechanics of the fall as the fall was unwitnessed, a defense accident reconstruction expert was necessary to counter plaintiff’s accident reconstruction expert.
  - **Carla Kinslow, Toxicologist, 18.1 hours @ \$580= \$10,556.** Decedent’s blood had alcohol in it and the toxicologist would testify about its impact related to the fall. In the absence of witnesses, the Court finds a toxicologist’s testimony would be especially relevant.
  - **Sandra Shefrin, MD, 10 hours @\$950/hr= \$9,500.** Again, because no one saw the fall, the Court finds it especially relevant and topical because this was not decedent’s treating doctor thus she would have less likelihood for any preexisting bias regarding decedent’s medical condition in general.
  - **Dean Stolorow, PhD, 5 hours @\$425/hr= \$2,125.** A biomechanical expert retained after receiving Plaintiff’s expert witness disclosure. Again, given the paucity of factual information due to lack of witnesses to the fall, the Court finds this testimony would be reasonable.
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Accordingly, for the reasons stated above, plaintiff's motion to strike the fees and costs requested is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

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9:00 AM

Line 2

23-CIV-04827 EMILY BRADLEY VS. FREDERICK WATSON, MD, ET AL

EMILY BRADLEY  
FREDERICK WATSON

DONNA ETEMADI  
BARRY C. MARSH

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Plaintiff's Motion to Compel Further Responses to Defendant Mills Peninsula's Responses to Plaintiff's First Set of Special Interrogatories

### **TENTATIVE RULING:**

Plaintiff Emily Bradley's Motion to Compel Further Responses to Defendant Mills Peninsula's Responses to Plaintiff's First Set of Special Interrogatories is GRANTED.

#### *Procedural Requirements*

"A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc. section 2030.300 subd.(b)(1).) That declaration must "state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc. section 2016.040 subd. (a).)

Here, Plaintiff's counsel's supporting declaration discusses meet and confer efforts by written correspondence, but not in person, by telephone, or videoconference. (Etemadi Decl., ¶¶7-9.) Meet and confer requirements are therefore minimal. However, Defendant largely does not raise this as a significant issue in its opposition. Therefore the Court finds the meet and confer requirements sufficient.

#### *Motion to Compel Further Responses*

A party that has propounded written interrogatories may move for an order compelling a further response if the propounding party deems that an answer to a particular interrogatory is evasive or incomplete or that objection to an interrogatory is without merit or too general pursuant to Cal. Code of Civ. Proc. Section 2030.300(a).

Here, Plaintiff served Plaintiff's Request for Special Interrogatories ("SI"), Set One on Defendant Mills Peninsula on October 16, 2025. (Etemadi Decl., ¶¶3-4, Exh. D.) Defendant Mills Peninsula served a response on December 2, 2025. (*Id.*, at ¶¶5-6, Exh. E.) Plaintiff's discovery requests at issue here are Special Interrogatories, Set One, No.'s 6 and 7:

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SPECIAL INTERROGATORY NO. 6:

DESCRIBE ALL policies and procedures in place at MILLS PENINSULA MEDICAL CENTER from May 2020 until August 2022 RELATED TO OR REGARDING the practice of early discharge due to the COVID-19 pandemic.

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SPECIAL INTERROGATORY NO. 7:

IDENTIFY ALL DOCUMENT(S) RELATED TO OR REGARDING policies and procedures in place at MILLS PENINSULA MEDICAL CENTER from May 2020 until August 2022 RELATED TO OR REGARDING the practice of early discharge due to the COVID-19 pandemic.

(Separate Statement ISO Motion, at p. 2:2-5, 3:9-13.)

However, Plaintiff's moving papers for "PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO DEFENDANT MILLS PENINSULA'S RESPONSES TO PLAINTIFF'S FIRST SET OF SPECIAL INTERROGATORIES," filed February 4, 2026, presents argument substantively focused on a request for production of documents. Despite that, Plaintiff's Separate Statement in support of this Motion is specifically for SI No.'s 6-7, and Defendant's opposition is focused on same.

The core of the dispute is whether Defendant's policies and procedures relating to the practice of early discharge due to the COVID-19 pandemic are relevant to the dispute or whether the request for those policies is reasonably calculated to lead to the discovery of admissible evidence. Plaintiff argues that the policies are relevant because they relate to the early discharge of the decedent in the action and the reasons for that discharge, pointing to the deposition of Dr. Shital Aggarwal. (See Etemadi Decl., ¶¶10-11, Exh. F.)

Defendant's core objection in its Response to SI No.'s 6 and 7, are that the information sought is not relevant. See, Def.' Separate Statement, generally. Defendant points to Dr. Aggarwal's testimony as establishing that the timing of the discharge was "based on based on clinical circumstances. This patient came in with demand, so - - - demand ischemia, so patient was admitted as an observation. Typically, patients are discharged 24, 48 hours." (Opp. at p. 8:15-17, citing Aggarwal Depo. At p. 31:16-19.)

In contrast, Plaintiff has argued that as Michael Bradley was discharged one day early during the Covid-19 pandemic, it is relevant whether or not he was discharged early due to Covid-19 protocols. See, Etemadi Decl., Exh. A for SI No.'s 6. Defendant then agreed during the meet and confer to this: "Defendant will supplement responses to Special Interrogatories No.'s 1, 6 & 7." Etemadi Decl., Exh. B, Feb. 1, 2026 letter from Attorney Racic (emphasis added). Neither

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side appears to raise this point in their argument.

At an Informal Discovery Conference (“IDC”) held on May 18, 2026, it appears these and other discovery requests were discussed. Relevantly, the Civil Commissioner correctly noted:

“As for MPMC policies regarding early discharge during the COVID-19 pandemic, the Commissioner thinks the existence, implementation, and execution of such policies, if they exist, would be probative here such that Defendants should provide further responses to Special Interrogatories regarding same.”

Minute Order, 05/18/2026.

Thus despite actually agreeing in writing to amend but then not amending, and despite the Civil Commissioner’s express recommendation, Defendant still has not amended on SI No.’s 6 and 7. This is inexplicable, and the deposition testimony of Dr. Aggarwal is also not dispositive. The relevant testimony from Dr. Aggarwal is as follows:

Q. No. It’s okay.

And then the expected date of discharge that you listed as May 26, 2022, Mr. Bradley was ultimately discharged on May 25<sup>th</sup> 2022. Do you recall that?

A. No.

Q. Do you know in circumstances like this with the expected date of discharge, how is that date usually decided?

A. It’s based on clinical circumstances. This patient came in with demand, so – demand ischemia, so patient was admitted as an observation. Typically, patients are discharged 24,48 hours.

Etemadi Decl., Exh. F, Depo. Of Dr. Aggarwal, pg, 31.

All this testimony establishes, is first, that Dr. Aggarwal does not even recall the discharge listed date or actual discharge date. Second, she was then asked, “how is that date usually decided.” She was not asked how it was decided specifically in relation to Michael Bradley. Third, she then describes a typical or usual practice, that discharges are based on clinical circumstances. Unfortunately, there were no follow-up questions on this point. There was no question as to why Michael Bradley was specifically discharged a day early. There are also no questions at all, throughout the transcript, regarding the hospital’s Covid-19 early discharge policy, if any; thus no questions at all whether or not such a policy affected Michael Bradley’s discharge. Finally, Dr. Aggarwal’s deposition was apparently limited to only one hour, with a good portion of the questions by Mr. Marsh representing this defendant. Ms. Etemadi was then allowed a shorter period of time, and near the end she was interrupted at least three times by Mr. Grant (representing Dr. Aggarwal). When the transcript is read as a whole, this can be interpreted as limiting plaintiff’s ability to ask pertinent questions.

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In any event, SI No.'s 6 and 7 passes the relevancy test, and defendant does not meet its burden to demonstrate that the questions are clearly irrelevant to support its initial objections. The motion is thus GRANTED. Defendant to serve code-compliant substantive responses answering the call of these questions within 21 days of service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

25-CIV-07605      JEEWON PARK BY AND THROUGH HIS CONSERVATOR HAE SOO  
PARK VS. ANTHONY DIODATI, ET AL

JEEWON PARK BY AND THROUGH HIS CONSERVATOR MARC LIBARLE  
HAE SOO PARK  
ANTHONY DIODATI

ROBYN H. SHIELDS

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Defendant Primrose Gardens, LLC's Demurrer to Plaintiff's First Amended Complaint

**TENTATIVE RULING:**

The Demurrer of Defendant Primrose Gardens, LLC ("Defendant") to the First Amended Complaint ("FAC") by Jeewon Park, by and through his conservator, Hae Soo Park, ("Plaintiff") is **OVERRULED** as to the statute of limitations argument and **SUSTAINED WITH LEAVE TO AMEND** as to failure to allege facts sufficient to support a cause of action, as set forth below.

*FACTUAL BACKGROUND*

On November 9, 2018, Plaintiff entered into a residential lease agreement with Defendant Primrose Gardens, LLC ("Primrose"). (FAC, ¶ 7.) Before the time of entering into the lease, it was disclosed to Defendants that Plaintiff was a person with special needs and would require the presence of a caregiver at all times. (*Ibid.*) At some point during the tenancy, Defendant Diodati unilaterally relocated Plaintiff to a more isolated unit on the premises due to noise complaints allegedly stemming from Plaintiff's disability-related behaviors. (*Id.*, at ¶¶ 9, 20.)

On May 15, 2023, while Plaintiff's caregiver stepped out briefly, Defendant Diodati entered Plaintiff's unit without permission. (*Id.*, ¶ 10.) Defendant Diodati knew that Plaintiff Park was making noise due to his disability. (*Id.*, at ¶ 52.) During the unauthorized entry, Diodati allegedly assaulted and battered Plaintiff, verbally berated him, and caused Plaintiff severe emotional and physical harm. (*Id.*, ¶ 10.) Defendant Diodati continuously shouted at Plaintiff while trespassing in Plaintiff's apartment. (*Id.*, ¶ 58.) Defendant Diodati also grabbed Plaintiff with his left hand by the throat, pushed Plaintiff against the hallway wall, and held him there. (*Id.*, at ¶ 64.) After opening the door to Plaintiff's apartment, Defendant Diodati again pushed Plaintiff back into his apartment and closed the door. (*Ibid.*)

*LEGAL STANDARD*

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law.

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(*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) When considering demurrers, courts “are required to construe the complaint liberally to determine whether a cause of action has been stated, given the assumed truth of the facts pleaded.” (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

The facts to be pleaded are those upon which liability depends—i.e., “the facts constituting the cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) These are commonly referred to as “ultimate facts.” (*Ibid.*, citing *Burks v. Poppy Construction Co.* (1962) 57 Cal.2d 463, 473–74.)

“The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The court “may consider all material facts pleaded in the complaint and those arising by reasonable implication therefrom; it may not consider contentions, deductions or conclusions of fact or law. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220 (citing *Moore v. Conliffe* (1994) 7 Cal.4th 634, 638; *Montclair Parkowners Assn. v. City of Montclair* (1999) 76 Cal.App.4th 784, 790).)

If there is any reasonable possibility that plaintiff can cure the deficiency by amendment, then leave to amend should be granted even if the demurrer is sustained. (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.) However, where there is no reasonable possibility that amendment can cure the defects of the Complaint, a trial Court does *not* abuse its discretion by sustaining a demurrer without leave to amend. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) It is Plaintiff’s burden to prove such reasonable possibility. (*Ibid.*)

Since a general demurrer “admits the truth of all material factual allegations in the complaint,” a plaintiff’s ability to prove these allegations “does not concern the reviewing court. The plaintiff need only plead facts showing that they may be entitled to some relief.” (*Fisher v. San Pedro Peninsula Hosp.* (1989) 214 Cal.App.3d 590, 604 (internal quotations omitted) (superseded by statute on other grounds).)

### LEGAL ANALYSIS

The FAC alleges the First through Eleventh Causes of Action against this Defendant. First, Defendant demurs that certain causes of action are barred by the applicable statutes of limitations. Second, Defendant demurs that certain causes of action fail to allege facts sufficient to support these causes of action.

#### *Statutes of Limitations*

Defendant contends that the First, Second, Third, Fifth, Sixth, Ninth and Tenth Causes of Action are barred by the two-year statutes of limitations that govern these claims. (See Code Civ. Proc., § 335.1; Gov. Code, § 12989.1, subd. (a); 42 U.S.C.A. § 3613.) Defendant contends that the last date alleged in the Complaint and FAC is May 15, 2023, and thus more than two years passed

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before the filing of the Complaint on September 29, 2025.

For a demurrer to be sustained based on the statute of limitations, it must clearly and affirmatively appear on the face of the complaint that the action is barred. (*Citizens for a Responsible Caltrans Decision v. Department of Transportation* (2020) 46 Cal.App.5th 1103, 1116–1117.) The demurrer will be overruled when the relevant facts are not clear such that the cause of action might be, but is not necessarily time-barred. (*Id.*, at p. 1117.)

“If a person entitled to bring an action, mentioned in Chapter 3 (commencing with Section 335) is, at the time the cause of action accrued either under the age of majority or lacking the legal capacity to make decisions, the time of the disability is not part of the time limited for the commencement of the action.” (Code Civ. Proc., § 352, subd. (a).)

California follows the general rule that the statute of limitations periods applicable to an incompetent’s actions for injuries will not begin so long as the incompetence continues. (*Tzolov v. International Jet Leasing, Inc.* (1991) 232 Cal.App.3d 117, 118 (*Tzolov*).)

The FAC alleges that at all relevant times, Plaintiff was subject to a conservatorship and thus did not have the legal capacity to make decisions. (FAC, ¶ 1.) Defendant argues that merely alleging Plaintiff lacks legal capacity because he is a conservatee is insufficient and that Plaintiff must allege facts to support a lack of legal capacity. However, Defendant does not cite any authority to support what other facts must be alleged. (See Defendant’s Reply, p. 2:12-17.)

Moreover, *Tzolov* is persuasive. In *Tzolov*, the plaintiff was rendered incompetent by grave head injuries from an accident in 1983. (*Tzolov, supra*, 232 Cal.App.3d at p. 119.) His incompetence continued thereafter. (*Ibid.*) On January 23, 1984, he filed an action for injuries against the defendants and his mother was appointed guardian ad litem. (*Ibid.*) The plaintiff then filed a second action against different defendants, and in November 1984 he voluntarily dismissed the second action with prejudice. (*Ibid.*) The trial court then dismissed the first action for failure to serve the summons and complaint within three years after commencing the action, and the Court of Appeal affirmed the dismissal. (*Ibid.*) In 1990, the plaintiff filed a new action against the same defendants in the first action. (*Ibid.*) The defendant demurred and moved to strike on the basis that the third action was barred by judgment in the first action and a one-year statute of limitations that ran once the plaintiff’s guardian ad litem was appointed. (*Ibid.*) The trial court granted the motion to strike and dismissed the action. (*Ibid.*) The Court of Appeal reversed, finding that the applicable limitation period will not run against an incompetent plaintiff simply because the plaintiff has a general guardian. (*Id.* at p. 120.) The court reasoned that Code of Civil Procedure section 352 refers only to the plaintiff’s competence and not to the nature or quality of his or her representation. (*Ibid.*) As such, the court concluded that the statute suggests no reason why appointment of a guardian ad litem should be treated differently than the appointment of a general guardian, and that the cause of action belongs to the plaintiff. (*Ibid.*) “The possibility that in a case such as this a limitation period may remain open for the lifetime of the plaintiff does not dictate a different result: The tolling statute reflects a considered legislative judgment that in enumerated circumstances the strong policy in favor of prompt disposition of disputes must give

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way to the need to protect a plaintiff who is unable to protect himself or herself.” (*Ibid.*)

Based on the allegations that Plaintiff was under a conservatorship and lacked legal capacity at all relevant times, the court finds it is not clear that these causes of action are time barred. In other words, Defendant fails to show from the face of the FAC and from the matters of which Defendant requests judicial notice that these causes of action are clearly time barred.

The Demurrer to the First, Second, Third, Fifth, Sixth, Ninth and Tenth Causes of Action as barred by the applicable statutes of limitations is **OVERRULED**.

*Failure to allege facts sufficient to support a cause of action*

Defendant demurs that the First, Third, Fourth, Fifth, Sixth, Seventh and Eleventh Causes of Action fail to allege facts sufficient to support these causes of action. (See Code Civ. Proc., § 430.10, subd. (e).)

In response, Plaintiff claims that the proposed Second Amended Complaint cures Defendant’s objections to these causes of action. However, Plaintiff failed to provide a copy of the proposed Second Amended Complaint with its opposition, as claimed.

Defendant acknowledges that it also did not receive a copy of the proposed Second Amended Complaint with Plaintiff’s opposition. Nevertheless, Defendant asserts it is likely the proposed Second Amended Complaint fails to address the deficiencies. However, leave to amend is liberally granted if a fair opportunity to correct any defect has not been given. (*Angie M. v. Sup.Ct. (Hiemstra)* (1995) 37 Cal.App.4th 1217, 1227.)

Accordingly, the Demurrer to the First, Third, Fourth, Fifth, Sixth, Seventh and Eleventh Causes of Action based on failure to allege facts sufficient to support these causes of action is **SUSTAINED WITH LEAVE TO AMEND** for Plaintiff to file and serve his proposed Second Amended Complaint.

*Request for Judicial Notice*

Defendant’s unopposed Request for Judicial Notice is **GRANTED**.

*Leave to Amend*

Plaintiff has ten days to file and serve the Second Amended Complaint from service of written notice of entry of order by both demurring defendants Primrose and Diodati.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

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If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

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9:00 AM

Line 4

25-CIV-07605      JEEWON PARK BY AND THROUGH HIS CONSERVATOR HAE SOO  
PARK VS. ANTHONY DIODATI, ET AL

JEEWON PARK BY AND THROUGH HIS CONSERVATOR MARC LIBARLE  
HAE SOO PARK  
ANTHONY DIODATI

ROBYN H. SHIELDS

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Defendant Anthony Diodati's Demurrer to Plaintiff's First Amended Complaint

**TENTATIVE RULING:**

Defendant Anthony Diodati's demurrer to the First Amended Complaint ("FAC") of Jeewon Park, by and through his conservator, Hae Soo Park, is:

- OVERRULED as to Plaintiff's claims for Intentional Infliction of Emotional Distress ("IIED"), Trespass, Assault, and Battery;
- SUSTAINED, with leave to amend, as to Plaintiff's claims for Negligence, Housing Discrimination, Violation of Fair Housing Act, and Unlawful Business Practices; and
- SUSTAINED, without leave to amend, as to Plaintiff's claims for Negligent Hiring/Supervision/Retention and Breach of Covenant of Quiet Enjoyment.

Plaintiff shall file an amended complaint, if any, within 10 days of receiving notice of entry of this order *and* notice of entry of this Court's order on Defendant Primrose Gardens LLC's demurrer. The 10-day deadline shall not be triggered until Plaintiff receives notice of entry of both orders.

Plaintiff has not opposed this motion. Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.]) However, "the integrity of the judicial process requires ... [the Court] to subject every motion to review before granting it." (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.21 (Thomson Reuters Apr. 2025 update).) Therefore, the Court has substantively reviewed Defendant's demurrer and motion to strike.

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### FACTUAL BACKGROUND

On November 9, 2018, Plaintiff entered into a residential lease agreement with Defendant Primrose Gardens, LLC (“Primrose”). (FAC, ¶ 7.) Before the time of entering into the lease, it was disclosed to Defendants that Plaintiff was a person with special needs and would require the presence of a caregiver at all times. (*Ibid.*) At some point during the tenancy, Defendant Diodati unilaterally relocated Plaintiff to a more isolated unit on the premises due to noise complaints allegedly stemming from Plaintiff’s disability-related behaviors. (*Id.*, at ¶¶ 9, 20.)

On May 15, 2023, while Plaintiff’s caregiver stepped out briefly, Defendant Diodati entered Plaintiff’s unit without permission. (*Id.*, ¶ 10.) Defendant Diodati knew that Plaintiff Park was making noise due to his disability. (*Id.*, at ¶ 52.) During the unauthorized entry, Diodati allegedly assaulted and battered Plaintiff, verbally berated him, and caused Plaintiff severe emotional and physical harm. (*Id.*, ¶ 10.) Defendant Diodati continuously shouted at Plaintiff while trespassing in Plaintiff’s apartment. (*Id.*, ¶ 58.) Defendant Diodati also grabbed Plaintiff with his left hand by the throat, pushed Plaintiff against the hallway wall, and held him there. (*Id.*, at ¶ 64.) After opening the door to Plaintiff’s apartment, Defendant Diodati again pushed Plaintiff back into his apartment and closed the door. (*Ibid.*)

### LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov’ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) When considering demurrers, courts “are required to construe the complaint liberally to determine whether a cause of action has been stated, given the assumed truth of the facts pleaded.” (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

The facts to be pleaded are those upon which liability depends—i.e., “the facts constituting the cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) These are commonly referred to as “ultimate facts.” (*Ibid.*, citing *Burks v. Poppy Construction Co.* (1962) 57 Cal.2d 463, 473-74.)

“The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The court “may consider all material facts pleaded in the complaint and those arising by reasonable implication therefrom; it may not consider contentions, deductions or conclusions of fact or law. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220 (citing *Moore v. Conliffe* (1994) 7 Cal.4th 634, 638; *Montclair Parkowners Assn. v. City of Montclair* (1999) 76 Cal.App.4th 784, 790).)

If there is any reasonable possibility that plaintiff can cure the deficiency by amendment, then leave to amend should be granted even if the demurrer is sustained. (*Hale v. Sharp Healthcare*

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(2010) 183 Cal.App.4th 1373, 1379.) However, where there is no reasonable possibility that amendment can cure the defects of the Complaint, a trial Court does *not* abuse its discretion by sustaining a demurrer without leave to amend. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) It is Plaintiff's burden to prove such reasonable possibility. (*Ibid.*)

Since a general demurrer "admits the truth of all material factual allegations in the complaint," a plaintiff's ability to prove these allegations "does not concern the reviewing court. The plaintiff need only plead facts showing that they may be entitled to some relief." (*Fisher v. San Pedro Peninsula Hosp.* (1989) 214 Cal.App.3d 590, 604 (internal quotations omitted) (superseded by statute on other grounds).)

### LEGAL ANALYSIS

#### A. Demurrer

##### 1. The Facts Alleged in the FAC Are Sufficient to State a Claim for Battery, Assault, Trespass, and IIED Against Defendant Diodati

###### a. Battery - Tenth COA

The elements of battery are: (1) the defendant touched plaintiff or caused plaintiff to be touched with the intent to harm or offend them; (2) that plaintiff did not consent to the touching; (3) that plaintiff was harmed or offended by defendant's conduct; and (4) that a reasonable person in plaintiff's situation would have been offended by the touching. (CACI No. 1300; *So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

Here, Plaintiff alleges that "Defendant Diodati grabbed [Plaintiff] with his left hand by the throat . . . [and] pushed [Plaintiff] against the hallway wall and held him there. (FAC, ¶ 64.) Then, [a]fter opening the door to [Plaintiff's] apartment, Diodati again pushed [Plaintiff] back into his apartment and closed the door." (*Ibid.*) Those facts are sufficient to state a claim for battery.

Accordingly, Defendant's demurrer is OVERRULED as to Plaintiff's battery claim.

###### b. Assault - Ninth COA

The elements of assault are: (1) the defendant acted, intending to cause harmful or offensive contact; (2) plaintiff reasonably believed that he was about to be touched in a harmful or offensive manner. In the alternative, a plaintiff must prove that: (1) defendant threatened to touch plaintiff in a harmful or offensive manner; (2) it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI No. 1301; *So v. Shin*, *supra* 212 Cal.App.4th at 668-69.)

Here, the sequence of events described in the complaint supports a cause of action for assault. Defendant entered Plaintiff's apartment, approached Plaintiff in an aggressive matter, shouting at

him, and ultimately grabbed him by the throat, held him against a wall, and shoved him back into his apartment. Under those facts, it is reasonable that Plaintiff would have feared he would be touched prior to the first physical contact, and again once Defendant grabbed him by the throat and held him against a wall.

Accordingly, Defendant's demurrer is OVERRULED as to Plaintiff's assault claim.

*c. Trespass – Eighth COA*

The elements of trespass are: (1) plaintiff owned/leased/occupied/controlled the property; (2) defendant intentionally/although not intending to do so, recklessly/negligently entered plaintiff's property; (3) plaintiff did not give permission for the entry or that defendant exceeded plaintiff's permission; (4) plaintiff was actually harmed; and (5) defendant's entry/conduct was a substantial factor in causing plaintiff's harm. (CACI No. 2000).

Plaintiff alleges that he was a tenant at Primrose, that defendant entered his property without permission, and assaulted and battered him, resulting in severe emotional and physical harm. Those facts state a cause of action for trespass.

Accordingly, Defendant's demurrer is OVERRULED as to Plaintiff's trespass claim.

*d. IIED – Fifth COA*

The elements of IIED are: 1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.) A defendant's conduct is "outrageous" when it is "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Ibid.*) The defendant must have "'intended to inflict injury or engaged with the realization that injury will result.'" (*Ibid.*, citing *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 905-06.)

In *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1045-46, the Court of Appeal found that questions of fact existed as whether a landlord who changed a tenant's locks at the request of her leaseholder employer, causing her to leave her residence, constituted outrageous conduct.

Here, Plaintiff – a tenant with special needs requiring a caregiver – alleges that Defendant Diodati entered into his apartment and battered him, including grabbing him by his throat and holding him against a wall, while Plaintiff's caregiver had briefly left. Taken as true, those facts constitute allegations of extreme and outrageous conduct to survive a demurrer.

Accordingly, Defendant's demurrer to OVERRULED as to Plaintiff's IIED claim.

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2. Plaintiff Fails to Allege Sufficient Facts to Establish a Claim for Negligent Hiring/Supervision/Retention, Negligence, Housing Discrimination, Violation of Fair Housing Act, Breach of Covenant of Quiet Enjoyment, and Unlawful Business Practices Against Defendant Diodati

a. Negligent Hiring/Supervision/Retention – First COA

The elements for a claim of negligent hiring, supervision and/or retention, are: (1) the employer defendant hired the employee; (2) the employee was/became unfit or incompetent to perform the work for which the employee was hired; (3) the employer defendant knew or should have known that employee was/became unfit or incompetent and that this unfitness or incompetence created a particular risk to others; (4) the employee's unfitness or incompetence harmed plaintiff; and (5) the employer defendant's negligence in hiring, supervising or retaining employee was a substantial factor in causing plaintiff's harm. (CACI No. 426.)

Here, Plaintiff has not alleged that Defendant Diodati negligently hired, supervised, or retained anyone. Rather, Plaintiff alleges that Diodati was an employee of Defendant Primrose. Further, Defendant Diodati is the employee who alleged harmed Plaintiff. Plaintiff has not, and cannot, plead a cause of action for negligent hiring/supervision/retention against Defendant Diodati.

Accordingly, Defendant's demurrer is SUSTAINED as to Plaintiff's negligent hiring / supervision / retention claim, without leave to amend. The Court notes that correcting this error in the proposed Second Amended Complaint would require more careful pleading. In the FAC, the First COA is "Against All Defendants" though Plaintiff does not even argue that this COA was ever intended to be against Diodati. If the First COA was instead entitled "Against Primrose Gardens, LLC" then this demurrer may not have even been necessary. A proper meet and confer may have avoided this as well.

b. Negligence – Second COA

The elements of negligence are: (1) a legal duty to use due care; (2) a breach of such legal duty; [and] (3) the breach as the proximate or legal cause of the resulting injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

Here, Plaintiff has not pleaded facts establishing an alleged duty owed to Plaintiff by Defendant Diodati, and a breach of such duty. Rather, the facts alleged in the FAC describe deliberate and purposeful conduct by Diodati – entering Plaintiff's apartment without permission and assaulting and battering Plaintiff – not acts that can be characterized as a failure to exercise reasonable care.

Accordingly, Defendant's demurrer is SUSTAINED as to Plaintiffs negligence claim, with leave to amend.

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*c. Housing Discrimination and Violation of the Fair Housing Act – Third and Sixth COA*

To bring a claim for housing discrimination and violation of the Fair Housing Act, a plaintiff must prove that: (1) the defendant was the owner of the property; (2) plaintiff sought to rent/was living in the property; (3) plaintiff had a history of having a disability that limited a major life activity; (4) defendant knew of, or should have known of plaintiff's disability; (5) in order to afford plaintiff an equal opportunity to use and enjoy the property, it was necessary to provide specific accommodation; (6) it was reasonable to provide specific accommodation; and (7) defendant refused to make this accommodation. (CACI No. 2548).

Here, while Plaintiff's FAC makes reference to defendant having a disability known to Defendants and a failure to accommodate that disability, Defendant does not plead facts establishing what major life activity was affected, what accommodations were necessary, that the accommodations were reasonable, and that defendant refused to make the accommodations.

Accordingly, Defendant's demurrer is SUSTAINED as to Plaintiff's claims for housing discrimination and violation of the Fair Housing Act, with leave to amend.

*d. Breach of Covenant of Quiet Enjoyment*

The common law covenant of quiet enjoyment promises "that the lessor will allow possession and quiet enjoyment of the premises . . . and will not by his own acts disturb the possession of the tenant." (*Marchese v. Standard Realty & Dev. Co.* (1977) 74 Cal. App.3d 142, 147.)

A breach of covenant claim arises from contract. Here, the contract is a lease agreement between Plaintiff and Defendant Primrose, the landlord. (FAC, ¶ 7.) Defendant Diodati merely "an individual employed by Defendant Primrose." (*Id.*, at ¶ 3.) He is not a party to the lease agreement and therefore cannot be sued for breach of a covenant flowing from the lease agreement.

Again as noted above, more careful pleading identifying which COA is directed to which defendant, along with a proper meet and confer, may have avoided this demurrer.

Defendant's demurrer to Plaintiff's breach of covenant of quiet enjoyment is SUSTAINED, without leave to amend.

*e. Unlawful Business Practices*

Plaintiff's unlawful business practices claim is alleged solely on conclusory terms without alleging facts supporting how relocation or the underlying altercation constitute business practices. (*See Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 618-619.)

Accordingly, Defendant's demurrer is SUSTAINED as to Plaintiff's unlawful business practices claim, with leave to amend.

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*Leave to Amend*

Plaintiff has ten days to file and serve the Second Amended Complaint from service of written notice of entry of order by both demurring defendants Primrose and Diodati

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-07605      JEEWON PARK BY AND THROUGH HIS CONSERVATOR HAE SOO  
PARK VS. ANTHONY DIODATI, ET AL

JEEWON PARK BY AND THROUGH HIS CONSERVATOR MARC LIBARLE  
HAE SOO PARK  
ANTHONY DIODATI

ROBYN H. SHIELDS

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Defendant Anthony Diodati's Motion to Strike portions of Plaintiff's First Amended Complaint

**TENTATIVE RULING:**

Defendant Diodati's unopposed Motion to Strike portions of Plaintiff's First Amended Complaint was filed concurrent with its Demurrer also heard on this calendar. The factual summary is not repeated as it would be redundant. The motion is GRANTED in part and DENIED in part.

Defendant seeks to strike the 4<sup>th</sup> Cause of Action (COA) for Punitive Damages, the not-numbered (12<sup>th</sup>) COA for Exemplary Damages, and all other references to punitive and/or exemplary damages. Notice of Demurrer and Mtn. to Strike, pg. 3, lines 13-19.

Punitive damages may be recovered "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (a).)

"'Malice' is means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code §3294, subd. (c)(1).)

"'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294, subd. (c)(2).)

"A person acts with knowing disregard when the person is aware of the probable dangerous consequences of the person's conduct and deliberately fails to avoid those consequences." (CACI No. 3940.)

"'Despicable conduct' is conduct that is so vile, base, or contemptible that it would be looked down on and despised by reasonable people." (CACI No. 3940.)

Here, the assaultive conduct alleged by Plaintiff is, as pleaded, conduct intended by the defendant to cause injury or carried on with willful and conscious disregard of Plaintiff's safety – which is the definition of malice. The alleged unauthorized entry into Plaintiff's apartment adds a dimension further supporting punitive damages in relation to the underlying assault and battery.

(*See Sprinks, supra*, 171 Cal.App.4th at 1055-56 [holding that causes of action for trespass and forcibly entry can support punitive damages where landlord's acts are willful and potentially outrageous].)

Accordingly, Defendant's motion to strike is DENIED as to Plaintiff's claim for punitive damages in the 4<sup>th</sup> COA and in the prayer.

However, Defendant's motion to strike is GRANTED as to Plaintiff's not-numbered (12<sup>th</sup>) COA for exemplary damages, which are redundant of the claim for punitive damages. (*Los Angeles Unified School District v. Superior Court* (2023) 14 Cal.5th 758, 768 [acknowledging that "punitive damages . . . are sometimes referred to as exemplary damages].)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

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9:00 AM

Line 6

26-CIV-03625      IN RE: VINTAGE EQUITY GROUP, LLC

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VINTAGE EQUITY GROUP, LLC

JUAN CARLOS LOZANO

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Petitioner's Petition for Approval for Transfer of Payment Rights by and Between Payee, Elisabeth Lohier, and Petitioner

**TENTATIVE RULING:**

For the reasons stated below, Petitioner Vintage Equity Group, LLC's ("Petitioner" or "Vintage") currently unopposed "Verified Petition for Approval for Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code § 10134 et. seq.," filed May 5, 2026, is conditionally GRANTED. (Ins. Code Sect. 10134, *et. seq.*)

The Petition is granted conditioned upon Petitioner showing compliance with the service requirements set forth in Ins. Code. §§ 10134(g) and 10139.5(f)(2), which require that Petitioner serve all relevant documents on all interested parties, including the Petition (with attached Exhibits) and notice of the Aug. 28, 2026 hearing date. The Court is unable to locate in the Court's file any proof(s) of service showing that the payee ("E.L") and/or the "Obligor" (Brighthouse Life Insurance Company) were served with either the Petition itself (including each of the attached Exhibits) or the July 8, 2026 order re-setting the hearing date for Aug. 28, 2026.

If they were served in advance of this hearing, then Vintage's counsel is to e-file and email courtesy copies of these proof(s) of service to dept20@sanmateocourt.org before this hearing.

If they were not served at all, then Vintage's counsel is to still email Dept. 20 to advise there are no proof(s) of service. In which case, the Court will retract the conditional grant, and instead continue the hearing to a future date to allow proper service. Before the next hearing date in addition to curing service, Vintage should then address the following potential issues:

None of the Exhibits to the Petition, filed May 5, 2026, is signed/executed. (See Petition, attached Exhibit A ("Structured Settlement Payment Right Purchase & Assignment Agreement"); Exhibit B ("California Disclosure Notice"); Exhibit C (Declaration ISO Request to Transfer Structured Settlement Payments); Exhibit D ("Statement of Independent Professional Advice"); Exhibit E ("Seller Dependents") and Exhibit F ("Certificate of Marital Status."))

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Further, Petitioner is asking the Court to find, under Insurance Code § 10134 et. seq., that the proposed transaction is fair and reasonable and in the best interests of the Payee. However, nearly all relevant financial information has been redacted. (See Petition, Exhibits A-C.) Petitioner asks the Court to find that the transfer agreement, pursuant to which Petitioner would purchase, for \$263,431.96, the right to receive a lump sum payment of \$411,000 on July 15, 2030, is fair and reasonable. But Petitioner has redacted nearly all relevant financial details, including the discount rate being applied, and how it was calculated. The Court recognizes that E.L.'s declaration in support of the petition, but the fairness analysis is somewhat hindered by the lack of financial detail.

E.L.'s declaration also states that she executed one prior transfer, but no information is provided as to the details of that prior transfer.

Due to this procedural posture, the matter will be deemed contested with counsel to appear;  
Zoom – Courtroom L.

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